



File No: EXP202302277

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 13, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against AUTOFER, S.L. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on July 26, 2023, the proposed resolution was issued, which is transcribed below:

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Procedure No: EXP202302277 (PS/00095/2023)

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection before the entity, AUTOFER, S.L. with CIF: B28306389 (hereinafter, "the respondent"), by virtue of a complaint filed by Mr. A.A.A. (hereinafter, "the complainant"), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and based on the following:

BACKGROUND

FIRST: On February 20, 2023, a document was submitted to this Agency by the complainant in which they state, among other things, the following:

"Having previously submitted a complaint through this same channel with file No: EXP202212099 (processed by Autocontrol), for receiving not one, but multiple advertising SMS after having expressly requested the cancellation of my data for that purpose. I received a resolution dated February 6, 2023, indicating that the company had taken measures for the "error" (which I say is repeated) committed. Stating that such situations will not happen again, and not being sanctioned in that resolution for "good faith." I received the same UNWANTED SMS from the company on THURSDAY, FEBRUARY 9, 2023 (3 days after the resolution). I clarify that, even being a customer, I have NEVER AUTHORIZED the use of my data for advertising purposes, and after the advertising SMS, I have actively and passively requested that they do not use my data for those purposes. I can also attach emails that I already submitted in the previous complaint as they do not even provide a way to unsubscribe (...)"

Along with the complaint document, the following documentation is submitted:

- Dated April 20, 2021, a copy of the email sent from the complainant's email address to the email address contacto@autofer.com with the following message:
 - o "Good morning, despite having formally requested the cancellation of all my data twice, I continue to receive advertising from AUTOFER (the last just a few minutes ago). I have informed the Data Protection Agency of the facts so that they can take appropriate measures against your poor management. Likewise, I formally request the immediate cancellation of all my data in your systems."
- Dated April 20, 2021, a copy of the email sent from AUTOFER's contact email contacto@autofer.com to the complainant's email address with the following message:
 - o "Good afternoon, I am writing from the marketing department, I am sorry that you have had this problem. From this moment on, your data will be removed from our database. I apologize for the inconvenience. Best regards."
- A copy of the SMS received on Thursday, February 9 at 17:47:

"This month only at Renault AUTOFER we assume 100% of the franchise of your second claim. Call ***PHONE.1 for more information. ***ADDRESS.1".

SECOND: In the context of the file opened in this Agency with No EXP202212099 (AT/04869/2022), where the complainant, on October 21, 2022, reports that, after having requested the cancellation of

their data and the request not to receive any more advertising, and after receiving a response with the "supposed cancellations," they continue to receive advertising SMS.

Requested by this Agency, information from the respondent regarding the events reported in the complaint, it stated, on December 14, 2022, among other things, that due to human error, the vehicle recipient of the complainant at the workshop checked the box for sending commercial information, removing "DO NOT WANT TO RECEIVE COMMERCIAL INFORMATION," as shown in the screenshot attached, also indicating that, "The consents were withdrawn so that they would not receive commercial communications."

THIRD: On February 24, 2023, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LPDGGD, upon appreciating possible violations.

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rational indications of a violation of the regulations in the scope of the competencies of the Spanish Agency for Data Protection.

FOURTH: On 14/06/23, the Directorate of the Spanish Agency for Data Protection initiated sanctioning proceedings against the complained entity, upon finding reasonable indications of a violation of the provisions established in Article 21 of the LSSI, with an initial sanction of 10,000 euros (ten thousand euros).

FIFTH: On 27/06/23, the complained entity submitted a written statement of allegations to this Agency, in which, among other things, it states the following:

FIRST. – The complainant states that he received an unwanted SMS from AUTOFER, S.L. on February 9, 2023, having previously requested the deletion of his data and having received a satisfactory response from our entity. AUTOFER, S.L. has proceeded to carry out the pertinent checks in the different files of the company, verifying that on 18/11/2022 the personal data of the interested party was deleted in the DMS "Quiter," proof of which is the following screenshot (...) As can be seen, it has been marked with an "X" that no commercial information should be sent to the client, in the line "RE" which stands for Renault, the brand to which AUTOFER, S.L. belongs.

SECOND. - In accordance with the principle of proactive responsibility, this agency was informed that AUTOFER, S.L. has made the payment for the training of the privacy officer in data protection matters. However, since it was expected that the entity in charge of the training would convene specialized courses for the use of the "Quiter" tool, aimed at dealers of the Renault brand, the course could not begin until February 8.

It is important to note that the "Quiter" tool is used in the automotive sector and presents unique particularities. It is not limited to a specific sector, but the DMS is also configured according to the brand to which the dealership belongs. This makes it a complex tool to handle, requiring specialized courses.

THIRD. - The course was convened by the entity PROASSA and took place from February 8 to March 30, 2023, as indicated in the attached diploma (Annex 1). The content of the course included the following topics: (...)

Regarding the topic of course 7 "The design and implementation of data protection policies," an explanation is provided on the handling of the DMS in relation to the tabs of LSSI and GDPR.

However, an issue arose at the end of April when the privacy officer detected that the markings in the DMS had not been carried out correctly. Specifically, the box corresponding to "EG" (Group companies) had not been selected, according to her criteria. The privacy officer had omitted this selection because AUTOFER, S.L. does not form part of the Group.

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part of any Group. Instead, only the "RE" boxes, which refer to Renault, had been checked.

The privacy officer was convinced that, given the shared responsibility between RENAULT COMERCIAL ESPAÑA and AUTOFER S.L., simply marking "RE" was sufficient to block the data for both companies.

FOURTH. - The omission of marking the corresponding boxes in the "EG" field in the DMS, due to a lack of knowledge regarding its proper management, resulted in the inclusion of this customer's data in the list for the commercial campaign dated February 9, 2023. Once this error was detected at the end of April, extensive verification work began throughout the DMS, with the aim of replicating the appropriate markings in all customer personal files. These tasks were carried out from the end of April to the beginning of June, and a data update was also conducted.

FIFTH. - AUTOFER S.L. is aware of the importance of properly managing data and maintaining the confidentiality of information. However, sometimes, despite efforts to do things as well as possible, errors can occur. In this specific case, an error was made by omitting the marking of the boxes in the "EG" field in the DMS due to a lack of knowledge regarding its proper management. It is important to highlight that the company acknowledges this error and has taken immediate measures to correct it. Prior to being notified of this sanctioning procedure, extensive verification work had been carried out throughout the DMS, replicating the appropriate markings in the personal files of customers and conducting a data update. The company assumes responsibility for rectifying the error and commits to implementing preventive measures and providing the necessary training to prevent similar situations from occurring in the future.

SIXTH. - Currently, the automotive sector is going through a delicate moment due to various factors that are negatively impacting its functioning. One of the main challenges is the lack of money in dealerships; AUTOFER S.L. is no exception. This situation is due to several factors, including the decrease in new vehicle sales due to a lack of components, which has affected the income of dealerships.

Additionally, the economic crisis generated by the COVID-19 pandemic and inflation has led to a reduction in consumers' purchasing power, which has decreased the demand for automobiles. This low demand has resulted in an accumulation of inventory in dealerships and in our company in particular, which in turn requires capital investment to properly maintain and manage those vehicles.

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As a result, many dealers find ourselves in a difficult financial situation, which makes it challenging to cover our operating expenses and meet our financial obligations. Furthermore, we face the risk of receiving high fines, which could lead to the closure of the establishment or, at best, to job losses.

SEVENTH. - The fine imposed in the initiation agreement of the procedure represents an additional burden for our company, which is already in a precarious financial situation (Annex 2). We understand that this sanction is the result of an error made by an employee due to a misinterpretation in the use of a software program, which resulted in the omission of the appropriate markings in the DMS. This underscores the importance of having properly trained and qualified personnel to carry out these tasks. However, the imposition of such high fines on a small business like AUTOFER S.L. jeopardizes the survival and stability of jobs.

EIGHTH. - We request the regulatory authority to take the error into consideration and refrain from imposing a fine on us. The amount of the fine represents a significant figure for a small company like ours. We are committed to correcting the error and implementing measures to prevent similar situations from occurring in the future. We appeal to the understanding of the competent authorities and request favorable consideration of our situation, taking into account our financial difficulties and our commitment to rectify the error made. We trust that a fair and proportional solution can be found that allows us to safeguard the continuity of our company and the employment of our workers.

NINTH. - We understand that the claimant's right to privacy has been violated, and our company will assume responsibility for compensating for this damage. As proof of our willingness to rectify this situation, we attach a copy of the screenshot showing the current status of the client's personal file, as well as the DMS audit. We recognize the importance of protecting our clients' privacy and deeply regret what has occurred. We are committed to taking all necessary measures to correct this error and ensure that it does not happen with any other client. We would like to emphasize that this situation does not represent our usual standards of security and data protection. We are conducting a thorough review of our processes and procedures to prevent similar situations from occurring in the future.

I REQUEST THE AGENCY that, after analyzing the reasons presented in this document, as well as the attached supporting documents, it considers granting the corresponding warning without imposing a fine for this action, given that it was an unintentional error. We appeal to the understanding of the Agency and request that the context and specific circumstances surrounding this incident be taken into account.

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We fully acknowledge our responsibility for the error made and commit to taking all necessary measures to prevent similar situations from occurring in the future.

We value the importance of complying with regulations and laws regarding data protection, and we strive to maintain high standards in our handling of personal information. However, on this occasion, due to exceptional circumstances and a specific misunderstanding, this error occurred, which does not reflect our intention to violate such regulations.

Therefore, we respectfully request that consideration be given to granting the warning as a consequence of this incident and that a fine not be imposed that could have a significant negative impact on our company. We thank you in advance for your attention and consideration, and we are available to provide any additional information that may be required.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: The claimant indicates in their complaint that they continue to receive commercial communications from the entity being complained about, having even previously filed a complaint with this Agency, File No.: EXP202212099 (AT/04869/2022), for the same facts.

Second: In the Resolution of Archive No.: EXP202212099 (AT/04869/2022), dated 06/02/23, the following was expressly stated:

a).- In the Facts, the following was indicated:

FIRST: On October 21, 2022, and with entry registration number REGAGE22e00047292096, a complaint regarding AUTOFER, S.L. (hereinafter, the respondent) was received by this Agency for an alleged violation of Article 21 of the LSSI.

In particular, for the following circumstances: The claimant complains about receiving promotional SMS messages on their mobile phone line ***PHONE.2, after having requested the deletion of their data and receiving a satisfactory response from the respondent.

Along with the complaint, a copy of a deletion request sent by email on 10/09/2020 is provided. It also includes a copy of a response dated 20/04/2021, confirming the deletion of their personal data from their database.

The claimant provides copies of 6 SMS messages received between 04/04/2022 and 05/10/2022.

They indicate that they received the last one on 18/10/2022 (...).

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b).- In the Legal Basis III, the following can be read:

“(…) III Statements of the Respondent:

In response to the transfer and information actions carried out, a written statement has been received in this Agency from the Respondent in which, for the purposes here, it states the following: They indicate that they process the data of the Claimant with the consent granted by the Claimant on 12/09/2019 (they provide a copy of the supporting document signed by the Claimant).

Subsequently, the Claimant opposed the sending of commercial communications from the Respondent, a request that was attended to on 20/01/2021 (they provide a screenshot from their database).

On 07/11/2021, the Claimant took their car for repair, and the employee who collected it, by mistake, not only checked the box to receive information about the status of the car but also checked the box to receive commercial communications. This is the reason why the Claimant has been receiving these communications. To resolve this error, they have re-checked the Claimant's opposition (as can be seen in the attached screenshot).

The Respondent states that they have taken several measures to prevent similar future incidents: they have created a checkbox system in the DSM that was communicated to all employees (who had to acknowledge receipt of the email). Training will be provided to the sales and after-sales teams on the use of the tools of the Respondent's system, a reminder of the functions and obligations regarding data protection will be made, and they will include an automatic unsubscribe link in commercial communications. Finally, the Respondent's policy on the exercise of rights procedure dating from 2018 was documented and approved (they provide a copy) (…).

And in point IV “Conclusions,” of the Legal Bases, we can read:

(…) In this case, considering that the complaint was filed in this Agency on October 21, 2022, pursuant to the provisions of section 5 of Article 65 of the LOPDGDD, it is appropriate to process it in accordance with the provisions of Title VIII of the aforementioned regulation.

This Title VIII provides in its Article 68.1, referring to the agreement to initiate the procedure for the exercise of the sanctioning power that, once the preliminary investigation actions have been concluded, it will correspond to the Presidency of the Spanish Agency for Data Protection, when appropriate, to issue an agreement to initiate the procedure for the exercise of the sanctioning power. In this case, once the reasons presented by the Respondent that are in the file have been analyzed, it is considered that the initiation of a sanctioning procedure is not appropriate as the complaint has been attended to, and it is appropriate to agree to archive the filed complaint (…).

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Third: Just to the complaint submitted on 20/02/23, the Claimant provides, among others, the following document:

- Copy of the SMS received on 09/02/23, with the following advertising message:

o “This month only at Renault AUTOFER we assume 100% of the deductible of your second claim.

Call ***PHONE.1 for more information. ***ADDRESS.1.”

LEGAL GROUNDS

I-

Competence.

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI.

II-

Summary of the events that occurred:

According to the Claimant, having requested, on the one hand, their right to no longer receive

commercial communications from the Respondent, and having obtained an affirmative response to their request (all of this in April 2021), and on the other hand, having also filed a complaint with this Agency (File No.: EXP202212099), whose resolution, dated 06/02/23, was to archive, as this Agency considered that the complaint had been attended to, a new commercial communication was sent to the Claimant, dated 09/02/23.

III.-1

Classification of the possible infringement committed by the sending of commercial communications
Before proceeding, it is necessary to respond to the allegations presented regarding the initiation of the file, as in them, the Respondent acknowledges the error and indicates that immediate measures have been taken to correct it. The company assumes responsibility for rectifying the error and commits to implementing preventive measures and providing the necessary training to avoid similar situations in the future and requests that the error committed be taken into consideration to mitigate the sanction. Notwithstanding the above, we must remember that, in File No.: EXP202212099 (AT/04869/2022) opened in this Agency for the same reasons, on 14/12/22, the Respondent had already stated that they had taken several measures to prevent similar incidents, such as the creation of a checkbox system in the DSM that was communicated to all employees, training was to be provided to the sales and after-sales teams on the use of the system's tools, reminders of the functions and obligations regarding data protection were being made, and an automatic unsubscribe link was to be included in commercial communications, among other measures, and based on that, this Agency proceeded, on 06/02/23,

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to archive the file, understanding that the reasons presented by the entity being claimed were sufficient to consider that the complaint had been addressed.

However, a few days after the entity stated that they had taken all necessary measures to prevent situations like this from occurring again, on 09/02/23, the claimant received a new commercial or advertising communication from the entity being claimed.

Therefore, all of the above may constitute a violation of what is established in Article 21 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

III.-2

Proposal and grading of the sanction

The aforementioned violation of Article 21 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious violation.”

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following aggravating

criteria established in Article 40 of the LSSI:

- The existence of intent (section a).- Since the entity, after receiving the claimant's request not to receive any more commercial communications and having satisfactorily responded to their request (in April 2021), and even having stated before this Agency, on 14/12/22, in the context of file No. EXP202212099 (AT/04869/2022), that the sending of commercial communications to the claimant was exclusively the result of a human error in having unintentionally unchecked the box of "DO NOT WANT TO RECEIVE COMMERCIAL INFORMATION" when taking the vehicle to the workshop, and stating that the error had already been resolved, has again sent commercial communications to them via SMS, dated 09/02/23.

In light of all the above, the following is issued,

PROPOSAL FOR RESOLUTION

FIRST: That the Director of the Spanish Agency for Data Protection sanctions the entity AUTOFER, SL. with CIF: B28306389, for violation of Article 21 of the LSSI, classified as "minor" in Article 38.4.d) of said regulation, with a sanction of 10,000 euros (ten thousand euros), for resending commercial communications to the claimant after they had requested not to receive any more commercial communications and after the entity stated that it had implemented all necessary measures to prevent this from happening again.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a 20% reduction of the amount. With the application of this reduction, the sanction would be set at 8,000 euros (eight thousand euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. In the event that they choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must be made effective by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. They must also send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

In virtue of this, they are notified of the above and are informed of the procedure so that within TEN DAYS they may state whatever they consider in their defense and present the documents and information they deem pertinent, in accordance with Article 89.2 of the LPACAP.

B.B.B.

THE INSTRUCTOR OF THE PROCEDURE.

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ANNEX

List of documents in the Procedure PS/0095/2023, the list of documents in the procedure is notified so that copies of those deemed appropriate can be obtained:

1. Complaint and documentation
2. Agreement to initiate the sanctioning procedure.
3. Allegations to the initiation agreement and attached documents.

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SECOND: On August 9, 2023, the respondent has proceeded to pay the sanction in the amount of 8,000 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202302277, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to AUTOFER, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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